



Evicted without a lawyer? Here's what you should know...¹

ONLY A JUDGE CAN EVICT YOU

If you are a tenant, you have the right to stay in your apartment until the landlord gets a court order stating that you must leave. The landlord must follow proper court procedure. Below is a basic guide for some parts of the procedure, along with tips if you choose to go through that procedure without a lawyer.

Don't be late: You must be in the courtroom by no later than the time listed on your summons!

Show up to court half an hour early. There can be long lines to get in and arriving early gives you a chance to make sure you are in the right place. If you fail to show, a default judgment will be entered against you.

COMMON CASE TYPES:

There are different types of evictions. The most common eviction case types include: **Non-Payment of Rent**, **Termination of Tenancy**, and **Non-Compliance**.

Non-Payment:

- The Landlord can generally bring an eviction suit against you if you are more than 15 days behind on rent. [Additional rules apply to subsidized tenants.]²
- Your landlord **must** give you written notice to pay rent before they bring a case against you.
- If there are dangerous conditions in your apartment, tell the Judge and bring evidence. These condition issues can be helpful in a non-payment case. Also tell the judge about any other inaccuracies in the notice from your landlord, including if you did not receive the required written notice. Inaccuracies can result in dismissal of your case.

Termination of Tenancy:

- Landlords can generally terminate tenancies for any non-discriminatory reason.
- A landlord cannot terminate as a form of retaliation against you. [Additional rules apply to subsidized tenants.]
- Landlords must provide you with *written* notice of the exact date of termination.
- The termination date on the written notice must be the day you normally would pay rent and at least 30 days in advance if you pay monthly (10 days if you pay weekly).

Non-Compliance:

- Landlord must provide you with *written* notice specifying the (1) breach of your lease, (2) how to remedy the breach, and (3) let you know that if the breach is not remedied/fixed within 20 days of the notice, your tenancy will terminate, and eviction may be filed.
- Landlord must also specify the date your tenancy will terminate if you do not remedy the breach. [Additional rules apply to subsidized tenants.]
- **Note:** you may not always be entitled to cure the breach.

Consider Resolving the Dispute!

The most common way to deal with an eviction is to make an agreement, also known as a **stipulation**, with your landlord to settle the eviction. Once an agreement has been reached, the parties present it to the judge for signature. Most cases settle in the hallway before court. The agreement reached by the parties **must be** in writing and must be **signed by both the landlord (or their attorney) and the tenant**. Once an agreement has been signed by a judge, the agreement becomes a judgment and order of the court. Take a signed copy with you before you leave the court.

¹ The information here is for educational purposes. It does not constitute legal advice on your particular situation or form an attorney-client relationship.

² If you are a subsidized tenant, you may want to contact a lawyer about your special rights.

A stipulation is most useful if you want to make an agreement to pay back rent you owe in installments and stay in your apartment (**Payment Stipulation**) or if you just need some additional time to move out. (**Moveout Stipulation**).

<u>Payment Stipulation</u>	<u>Moveout Stipulation</u>
• Landlord agrees to postpone the eviction as long as you make payments according to detailed payment plan. • You should ONLY sign a payment stipulation if you KNOW you can follow the payment plan. Otherwise, your landlord can usually come back and have you removed quickly. • You should not sign a stipulation that requires you to give up your right to a hearing if you miss a payment. The landlord should have to prove you missed the payment. • Note: You may be eligible for assistance with paying back rent. Go to RIhousing.com/rentreliefri/ to learn more.	• You agree to move out by a certain date. This date is set in stone unless the landlord agrees to change it later. • If you do not move out by the agreed-upon move out date, the landlord typically moves you out with a constable or a sheriff without having to go back to court. • A landlord may agree to a moveout stipulation to give you more time to move out <i>in exchange for</i> your promise to move and not appeal the case. • Consider also asking the landlord to agree to forgive some or all of the rent you might owe and/or allow you to stay rent-free (called “use and occupancy payments”) until the move-out date. This may give you more time to save up money for your next place. • Consider requiring the landlord to give you a good reference.

Do not feel pressured to make an unfair agreement. If a landlord and a tenant cannot come to an agreement, the court *may* be able to provide a mediator. You can ask for one. The mediator is not your lawyer; their role is only to help resolve the dispute.

TRIAL

If you cannot reach an agreement on your own or with a mediator, the judge will have a trial. The purpose of the trial is for you and your landlord to each tell your side to the judge.

- Your landlord will get to talk first and tell the judge why he/she thinks you should be evicted.
- You will get a chance to question (cross examine) your landlord about what he/she told the judge, then you will get a chance to explain to the judge why you feel you should not be evicted, and to present evidence.
- Your landlord (or their attorney) will then get to ask you questions about what you told the judge.
- The judge may interrupt and ask questions **at any time** throughout the trial. You should answer the judge’s questions to the best of your abilities.

Listen carefully to the judge’s decision and make sure to ask for a copy of the Judgment/Order.

APPEAL RIGHTS

If you are not happy with the judgement in your case, you may appeal your case to the Superior court. If you plan to appeal, you must file it within 5 days (includes weekends!) of the judgment. If you cannot afford the appeal filing fee you can request to have it waived by filing a **Motion to Proceed in Forma Pauperis**. Make sure you fulfill all the requirements of an appeal, including:

1. Filing three separate forms: (1) the notice of appeal, (2) a Superior Court Civil Case Cover Sheet, and (3) a verified motion to proceed in Forma Pauperis.
2. Make sure to pay your rent on time once an appeal is filed; if you fail to pay your rent by the exact rent date (usually the 1st of the month) during the appeal process, regardless of the underlying eviction case, your appeal will be dismissed, and the District Court judgment will be upheld.

More Questions? Go to our website to learn about our virtual office hour: <https://www.rils.org>